

EASTMAN & SMITH LTD.

ATTORNEYS AT LAW

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January 23, 2024

Timothy J. Williams
80 Woodlake Trail
Mt. Vernon, OH 43050

Invoice # 3932662
Client # 3472
Matter # 222027
Billing Attorney: SECH

For Professional Services Rendered Through December 31, 2023

RE: Knox Cattle Company Dam

PROFESSIONAL SERVICES RENDERED

Date	Tkpr	Description of Services	Hours	Amount
12/11/23	SECH	Preparation of status report to Mark Long.	.80	552.00
12/12/23	SECH	Review and analyze Mullins Bros.'s motion to amend cross-claim instanter, together with proposed amended cross-claim; prepare correspondence to Mark Long regarding same.	.80	552.00
12/13/23	SECH	Analyze transcript of second day of deposition of Steve Mullins; prepare correspondence to Mark Long regarding same.	.80	552.00
12/14/23	CMGR	Analyze motion to amend cross claim.	1.50	255.00
12/14/23	SECH	Prepare outline of memorandum contra motion for leave to file amended cross-claim by Mullins; review Mullins documents regarding attorney fees incurred to date; prepare correspondence to Mark Long regarding same; review correspondence from attorney Brett Kravitz regarding production of Mr. Yough's documents; prepare response to Mr. Kravitz.	2.80	1,932.00
12/15/23	SECH	Correspondence with Mark Long regarding claim by Mullins Bros. for attorney fees under cross-claim on hold harmless agreement; preparation of memorandum contra Mullins Bros.' motion for leave to file amended cross-claim.	4.40	3,036.00
12/18/23	CMGR	Provide authority to oppose motion to amend cross-claim	2.50	425.00

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Date	Tkpr	Description of Services	Hours	Amount
12/18/23	SECH	Review correspondence from Matthew Cherup regarding available funds for dam repair; prepare response to Mr. Cherup; review correspondence from Mike Ulrey regarding check to homeowners association from The Landings Property Owners Association, Inc.; preparation of motion for summary judgment on State's Third Amended Complaint, and on Counterclaim.	7.50	5,175.00
12/19/23	CMGR	Provide legal authority for arguments to be made in the memo contra motion to amend cross-claim	5.30	901.00
12/19/23	SECH	Correspondence with Jeff Harris and others regarding status of funds on hand for dam remediation; revision of affidavit of Timothy Williams; further preparation of motion for summary judgment on State's Third Amended Complaint, and on Counterclaim; legal research and analysis regarding same.	6.00	4,140.00
12/20/23	SECH	Further preparation of motion for summary judgment on State's Third Amended Complaint, and on Counterclaim; prepare summary judgment motion against Mullins; preparation of memorandum contra Mullins' motion to amend cross-claim; preparation of motion for substitution of parties.	7.40	5,106.00
12/21/23	SECH	Further preparation of motion for substitution of parties; further preparation of summary judgment motions against State of Ohio and Mullins; analyze documents from Yough files for production; final preparation of privilege log; production of documents to opposing counsel.	8.00	5,520.00
12/22/23	SECH	Further preparation of motion for substitution of parties; further preparation of summary judgment motions against State of Ohio and Mullins; correspondence with attorney Rob Broeren regarding status of funds for remediation work on dam; telephone conference with Peggy Gaddis regarding 2005 agreement.	7.50	5,175.00
12/26/23	SECH	Preparation of memorandum contra Mullins' motion to amend cross-claim; filing and service of same.	5.50	3,795.00
12/27/23	SECH	Final preparation of motion for substitution of parties, together with proposed order; filing and service of same; correspondence with attorney Rob Broeren regarding inquiry about status of government funds for remediation work on dam.	2.80	1,932.00
12/28/23	AMVO	Finalize and serve Unopposed Motion to Substitute Partial Motion for Summary Judgment.	.40	60.00
FEES FOR PROFESSIONAL SERVICES				\$ 39,108.00

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SUMMARY OF PROFESSIONAL SERVICES

Tkpr	Name	Hours	Total
AMVO	Angela M. Vohsing	.40	60.00
CMGR	Claire M. Griffin	9.30	1,581.00
SECH	Stephen E. Chappellear	54.30	37,467.00
	TOTALS	64.00	\$ 39,108.00

CHARGES

Date	Description	Amount
12/17/23	Deposition Transcripts, PRI Court Reporting LLC, Steve Mullins deposition [Vol. II] 11/29/23	800.80

CHARGES **\$ 800.80**

INVOICE TOTAL **\$ 39,908.80**

Less Trust Applied \$ -23,548.24

INVOICE BALANCE DUE **\$ 16,360.56**

A late charge of 1.5% per month (18% Annual Rate) will be assessed after 60 days from the date of the invoice.